

Baldev Thakur And Others vs State Of H.P. And Another on 8 January, 2024

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA

Cr. MMO No. 50 of 2023

Reserved on: 22.11.2023

Date of Decision: 08.01.2024.

Baldev Thakur and others

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of

Versus

State of H.P. and another
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Hon'ble Mr. Justice Rakesh Kainthla, Judge.
Whether approved for reporting?1 Yes.

For the Petitioners : Mr. Nitin Thakur, Advocate.

For the Respondents : Mr Prashant Sen, Deputy Advocate
General, for respondent No.1-

State, with Mr Shakti Singh, DSP
Crimes, State CID.

Mr. Ankush Dass Sood, Senior
Advocate with Mr. Aman Sood,

Advocate, for respondent No.2.

Rakesh Kainthla, Judge

The informant-respondent No.2 made a complaint to
the police that she is the legal heir and daughter of Dr. G.R.
Bazliel. Her family owns property at Mashobra which belonged

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Whether reporters of Local Papers may be allowed to see the judgment? Yes.

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to her grandfather, Dr. I.R. Bazliel. This property was inherited
by Dr. G.R. Bazliel after the death of his father in 1986. Dr. G.R.

Bazliel developed severe depression in the year 2013. The

informant was taking care of him till 2016. Daljeet Singh,

petitioner No. 2, introduced Dr. G.R. Bazliel to Jienpuri Kamsuon
-petitioner No. 3 in the year 2016. The informant objected to the

of
relationship between her father and petitioner No. 3. When the
petitioners came to know about the objection raised by the
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informant, they influenced the informant's father to break his
contact with his family. He appointed Daljeet Singh as his
nominee to sell the property to Baldev Thakur-petitioner No.1.

The informant said that in case her father intended to sell the

property, the share should be given to the aunts and the

property should be sold after adopting the legal process. An
amount of 93.00 lacs was transferred from the account of the

informant's father. This amount was credited to his account
after the death of his wife. A total amount of 1.18 crore was
transferred in the name of Daljeet Singh. A sale deed was shown
to have been effected in the name of Baldev Thakur for a
consideration of 3.90 crores. This property was stated to be
self-acquired property contrary to the land record. No objection

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certificate was not obtained from any person. No transaction or deposit of any amount was reflected in the accounts of Dr. G.R.

Bazliel. The informant went to Mashobra to meet her father and

inquired how he had sold the property. However, the

informant's father was not present at Mashobra but was stated to have been shifted to Kufri. The informant filed a complaint

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with the police. The remaining portion of the property was sold to Baldev Thakur for a consideration of 10,50,000/-. The
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informant came to know about the death of her father through social media. No person in the family was informed about the death of the informant's father by the petitioners. The condition
of the informant's father deteriorated after 2013 and he suffered

a heart attack. He was advised to undergo routine bypass surgery

at IGMC but he was misguided not to undergo the surgery. The petitioners had taken possession of all the articles of the

informant's father. Therefore, it was prayed that the action be taken against them. The police registered an FIR No. 8 of 2022, dated 26.7.2022 at Police Station CID, Shimla.

2. The petitioners filed the present petition for quashing of the FIR. It is asserted that petitioners No.1 and 2 are permanent residents of District Shimla and petitioner No.3 is the

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wife of Dr. G.R. Bazliel. The informant is the adopted daughter of Dr. G.R. Bazliel. She had lodged an FIR against her father in

March 2017 for the commission of offences punishable under

Sections 420, 467, 468 and 471 of IPC. The police registered the

FIR No. 45 of 2017. A cancellation report was submitted by the police at the Police Station, Dhalli, which was accepted by the

of
learned Judicial Magistrate First Class (JMFC). The petitioner had purchased the property measuring 44-60 hectares for a
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consideration of 3 crores 90 lacs. Dr. I.R. Bazliel had written his last Will bequeathing the property in favour of Dr. G.R. Bazliel. The informant never cared for her father and she threatened

him during his last days. He executed an affidavit and published

the notices in the newspaper. The informant submitted a false

complaint to the police reproducing the facts of the earlier FIR and adding certain new facts. Police registered the FIR No. 8 of

2022. This FIR is an abuse of the process of law. The informant had accused her father during his lifetime and is accusing the present petitioners. The earlier FIR was thoroughly investigated by the police and a cancellation report was filed. The informant never challenged the Will of her grandfather. The civil remedy was not availed by the informant. She has filed a false complaint

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to settle the score with petitioner No.3. Therefore, it was prayed that the present petition be allowed and the FIR be quashed.

3. The State has filed a reply, reproducing the contents of the FIR. It was asserted that petitioner No.3 is residing in

Gurugram (Haryana) and is working as an Assistant Head Nurse at Medanta Hospital. The informant had filed an FIR No. 45/17,

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in which a cancellation report was prepared. The FIR No.8 of
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2022 and FIR No. 45 of 2017 are not based on the same facts.
Petitioner No.1 had failed to provide any proof of the payment of
the consideration. The signatures of Dr. G.R. Bazliel related to
his property were found to be suspicious. They have been taken
into possession by the Investigating Officer and have been sent

to the Forensic Science Laboratory for analysis. The result is

awaited. The contents of the complaint disclose the commission of a cognizable offence. A thorough investigation is being

conducted into the allegations. It was found that two cheques of 93.00 lacs and 25.00 lacs were issued in favour of Daljeet Singh. The signatures were found to be suspicious and they have been sent to FSL. Daljeet Singh is the nominee in all the bank accounts. The original documents were also seized and sent to

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the FSL. The petition is without any basis; hence it was prayed that the present petition be dismissed.

4. A rejoinder denying the contents of the reply and affirming those of the petition was filed by the petitioner.

5. A separate reply was filed respondent No.2, taking

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preliminary objections regarding the petitioners being wrongful
beneficiaries of the property, lack of maintainability, petitioners
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having hatched a conspiracy, the investigation being continued
and the present petition being premature. It was asserted that it
emerged during the investigation that the petitioners in

connivance with each other forged the documents, committed
the offences of cheating and hatched the criminal conspiracy.

The informant's father did not have to transact any business or

deal with petitioners No.2 and 3. The marriage certificate is
manufactured and procured and no sanctity can be attached to

the same. The informant's father died within one year of the
marriage in the mysterious circumstances in the hotel room. No
postmortem examination was conducted. The dead body was
buried in Sanjauli Cemetery in a hurry. No person in the family
was informed. An amount of 1,23,00,000/- was transferred by

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Dr. G.R. Bazliel without any justification. The aunt and the informant had made a complaint regarding the disposal of the ancestral property. No sale consideration had ever passed. The informant has e-mails showing the affection between the informant and her father. The informant was sending money to her father to meet the expenses. She had also brought the gifts of to him. The informant was never associated at the time of the cancellation of the FIR. The petitioners have committed various offences. The ancestral property cannot be conveyed without the consent of the legal heirs. Petitioner No.3 took advantage of the age of the informant's father. The affidavit and the public notices have been manufactured by the petitioners in furtherance of a criminal conspiracy. Therefore, it was prayed that the present petition be dismissed.

6. A rejoinder denying the contents of the reply and

affirming those of the petition was filed. A sur-rejoinder to the rejoinder was also filed.

7. I have heard Mr Nitin Thakur, learned counsel for the petitioners, Mr Prashant Sen, learned Deputy Advocate General for respondent No. 1-State and Mr Ankush Dass Sood, learned

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Senior Counsel assisted by Mr. Aman Sood, learned counsel for respondent No. 2-informant.

8. Mr. Nitin Thakur, learned Counsel for the petitioners submitted that the FIR does not disclose the commission of any

cognizable offence. The allegations in the FIR even if accepted to be true disclose the civil dispute and registration of the FIR in

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such a situation is impermissible. The informant had lodged an
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FIR against her father and she was disowned by her father. The

informant's father had married petitioner No.3 and all the petitioners were taking care of him. No objection was ever raised by the informant's father during his lifetime. Therefore, he prayed that the present petition be allowed and FIR be quashed.

9. Mr. Prashant Sen, learned Deputy Advocate General

for respondent no.1-State submitted that the investigation is continuing. The documents have been sent to the SFSL, Junga

and the result is awaited. There is no evidence of transfer of money to the informant's father and the sale deed appears to be forged being without consideration. The police are also investigating the documents executed by the informant's father to determine whether he had executed those documents or if

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these were forged by the present petitioners. Hence, he prayed that the present petition be dismissed.

10. Mr. Ankush Dass Sood, learned Senior Counsel for respondent No. 2 submitted that the investigation is continuing

and the present petition is premature. The allegations contained in the FIR show the commission of a cognizable offence. They

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establish that the petitioners had hatched a conspiracy and had
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prevailed upon the informant's father. They had forged the
documents stated to have been executed by the informant's
father. No sale consideration was ever paid to him. Even the
burial was hurried and not as per the religion of the informant's
father. The informant's father died under the mysterious

circumstances away from his home and the circumstances

justified the investigation. There was love and affection between the informant and her father. The burial of the deceased was not

proper. If the FIR is false, the police will submit a cancellation report and it will be premature for the Court to intervene in the

matter. Hence, he prayed that the present petition be dismissed.

11. I have given considerable thought to the submissions at the bar and have gone through the records carefully.

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12. The principles of exercising the jurisdiction under Section 482 of Cr.P.C. were laid down by the Hon'ble Supreme

Court in Supriya Jain v. State of Haryana, (2023) 7 SCC 711: 2023

SCC OnLine SC 765 wherein it was observed at page 716:-

"17. The principles to be borne in mind with regard to the quashing of a charge/proceedings either in the exercise of

of jurisdiction under Section 397CrPC or Section 482CrPC or together, as the case may be, has engaged the attention of this Court many a time. Reference to each and every precedent is unnecessary. However, we may profitably

rt refer to only one decision of this Court where upon a survey of almost all the precedents on the point, the

principles have been summarised by this Court succinctly. In Amit Kapoor v. Ramesh Chander [Amit Kapoor v. Ramesh

Chander, (2012) 9 SCC 460 : (2012) 4 SCC (Civ) 687 : (2013) 1 SCC (Cri) 986], this Court laid down the following guiding

principles : (SCC pp. 482-84, para 27)

"27. ...27.1. Though there are no limits to the powers of the Court under Section 482 of the Code

but the more the power, the more due care and caution is to be exercised in invoking these powers.

The power of quashing criminal proceedings, particularly, the charge framed in terms of Section

228 of the Code should be exercised very sparingly and with circumspection and that too in the rarest of rare cases.

27.2. The Court should apply the test as to whether the uncontroverted allegations as made from the record of the case and the documents submitted therewith prima facie establish the offence or not. If the allegations are so patently absurd and inherently improbable that no prudent person can ever reach such a conclusion and where the basic

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11

ingredients of a criminal offence are not satisfied then the Court may interfere.

27.3. The High Court should not unduly interfere.

No meticulous examination of the evidence is

needed for considering whether the case would end in conviction or not at the stage of framing of charge or quashing of charge.

27.4. Where the exercise of such power is absolutely essential to prevent patent miscarriage of justice and for correcting some grave error that might be

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committed by the subordinate courts even in such cases, the High Court should be loath to interfere, at the threshold, to throttle the prosecution in the
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exercise of its inherent powers.

27.5. Where there is an express legal bar enacted in any of the provisions of the Code or any specific law in force to the very initiation or institution and continuance of such criminal proceedings, such a bar is intended to provide specific protection to an

accused.

27.6. The Court has a duty to balance the freedom of a person and the right of the complainant or

prosecution to investigate and prosecute the

offender.

27.7. The process of the court cannot be permitted to be used for an oblique or ultimate/ulterior

purpose.

27.8. Where the allegations made and as they appeared from the record and documents annexed therewith predominantly give rise to and constitute a "civil wrong" with no "element of criminality" and does not satisfy the basic ingredients of a criminal offence, the court may be justified in quashing the charge. Even in such cases, the court would not embark upon the critical analysis of the evidence.

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27.9. Another very significant caution that the courts have to observe is that it cannot examine the facts, evidence and materials on record to determine

whether there is sufficient material on the basis of

which the case would end in a conviction; the court is concerned primarily with the allegations taken as a whole whether they will constitute an offence and,

if so, is it an abuse of the process of court leading to injustice.

27.10. It is neither necessary nor is the court called

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upon to hold a full-fledged enquiry or to appreciate evidence collected by the investigating agencies to find out whether it is a case of acquittal or conviction.

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27.11. Where allegations give rise to a civil claim and also amount to an offence, merely because a civil

claim is maintainable, does not mean that a criminal complaint cannot be maintained.

27.12. In the exercise of its jurisdiction under Section

228 and/or under Section 482, the Court cannot take into consideration external materials given by an accused for reaching the conclusion that no offence

was disclosed or that there was the possibility of his acquittal. The Court has to consider the record and

documents annexed therewith by the prosecution.

27.13. Quashing of a charge is an exception to the rule

of continuous prosecution. Where the offence is even broadly satisfied, the Court should be more inclined to permit a continuation of prosecution rather than its quashing at that initial stage. The Court is not expected to marshal the records with a view to deciding the admissibility and reliability of the documents or records but is an opinion formed *prima facie*.

27.14. Where the chargesheet, reported under Section 173(2) of the Code, suffers from fundamental legal

defects, the Court may be well within its jurisdiction to frame a charge.

27.15. Coupled with any or all of the above, where the

Court finds that it would amount to an abuse of

process of the Code or that the interest of justice favours, otherwise it may quash the charge. The power is to be exercised *ex debito justitiae*, i. e. to do

real and substantial justice for the administration of which alone, the courts exist.

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27.16. These are the principles which individually and preferably cumulatively (one or more) be taken into consideration as precepts to exercise

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extraordinary and wide plenitude and jurisdiction under Section 482 of the Code by the High Court.

Where the factual foundation for an offence has been laid down, the courts should be reluctant and should not hasten to quash the proceedings even on the premise that one or two ingredients have not

been stated or do not appear to be satisfied if there is substantial compliance with the requirements of the offence."

13. Similar is the judgment in Gulam Mustafa v. State of

Karnataka, 2023 SCC OnLine SC 603 wherein it was observed:-

"26. Although we are not for verbosity in our judgments, a slightly detailed survey of the judicial precedents is in order. In State of Haryana v. Bhajan Lal, 1992 Supp (1) SCC 335, this Court held:

"102. In the backdrop of the interpretation of the various relevant provisions of the Code under Chapter XIV and of the principles of law enunciated by this Court in a series of decisions relating to the exercise of the extraordinary power under Article 226 or the inherent powers under Section 482 of the Code which we have extracted and reproduced above, we give the following

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14

categories of cases by way of illustration wherein such power could be exercised either to prevent abuse of the process of any court or otherwise to secure the ends of

justice, though it may not be possible to lay down any

precise, clearly defined and sufficiently channelised and inflexible guidelines or rigid formulae and to give an exhaustive list of myriad kinds of cases wherein such

power should be exercised.

- (1) Where the allegations made in the first information report or the complaint, even if they are taken

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at their face value and accepted in their entirety do not prima facie constitute any offence or make out a case against the accused.

- (2) Where the allegations in the first information report and other materials, if any, accompanying the FIR

do not disclose a cognizable offence, justifying an investigation by police officers under Section 156(1) of the Code except under an order of a Magistrate within the purview of Section 155(2) of the Code.

- (3) Where the uncontroverted allegations made in the FIR or complaint and the evidence collected in

support of the same do not disclose the commission of any offence and make out a case against the

accused.

- (4) Where the allegations in the FIR do not constitute a cognizable offence but constitute only a non-

cognizable offence, no investigation is permitted by a police officer without an order of a Magistrate as contemplated under Section 155(2) of the Code.

- (5) Where the allegations made in the FIR or complaint are so absurd and inherently improbable on the basis of which no prudent person can ever reach a just conclusion that there is sufficient ground for proceeding against the accused.

(6) Where there is an express legal bar engrafted in any of the provisions of the Code or the concerned Act

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15

(under which a criminal proceeding is instituted) to the institution and continuance of the proceedings and/or where there is a specific provision in the

Code or the concerned Act, providing efficacious

redress for the grievance of the aggrieved party.
(7) Where a criminal proceeding is manifestly attended with mala fide and/or where the proceeding is

maliciously instituted with an ulterior motive for wreaking vengeance on the accused and with a view to spite him due to private and personal grudge.

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103. We also give a note of caution to the effect that the power of quashing a criminal proceeding should be exercised very sparingly and with circumspection and that too in the rarest of rare cases; that the court will not be justified in embarking upon an enquiry as to the reliability or

genuineness or otherwise of the allegations made in the FIR or the complaint and that the extraordinary or inherent powers do not confer an arbitrary jurisdiction on the court to act according to its whim or caprice."

14. It was laid down in CBI v. Aryan Singh, 2023 SCC (emphasis supplied)

OnLine SC 379, that the High Court cannot conduct a mini-trial

while exercising jurisdiction under Section 482 of Cr.P.C. The

allegations are required to be proved during the trial based on evidence led before the Court. It was observed:

"10. From the impugned common judgment and order passed by the High Court, it appears that the High Court has dealt with the proceedings before it, as if, the High Court was conducting a mini-trial and/or the High Court was considering the applications against the judgment and order passed by the learned Trial Court on conclusion of the trial. As per the cardinal principle of law, at the

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16

stage of discharge and/or quashing of the criminal proceedings, while exercising the powers under Section 482 Cr. P.C., the Court is not required to conduct

the mini-trial. The High Court in the common impugned

judgment and order has observed that the charges against the accused are not proved. This is not the stage where the prosecution/investigating agency is/are required to

prove the charges. The charges are required to be proved during the trial on the basis of the evidence led by the prosecution/investigating agency. Therefore, the High

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Court has materially erred in going in detail in the allegations and the material collected during the course of the investigation against the accused, at this stage. At the stage of discharge and/or while exercising the powers

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under Section 482 Cr. P.C., the Court has very limited jurisdiction and is required to consider "whether any

sufficient material is available to proceed further against the accused for which the accused is required to be tried or not".

11. One other reason pointed by the High Court is that the

initiation of the criminal proceedings/proceedings is malicious. At this stage, it is required to be noted that the investigation was handed over to the CBI pursuant to the

directions issued by the High Court. That thereafter, on conclusion of the investigation, the accused persons have

been charge-sheeted. Therefore, the High Court has erred in observing at this stage that the initiation of the

criminal proceedings/proceedings is malicious. Whether the criminal proceedings was/were malicious or not, is not required to be considered at this stage. The same is required to be considered at the conclusion of the trial. In any case, at this stage, what is required to be considered is a prima facie case and the material collected during the course of the investigation, which warranted the accused to be tried."

15. This position was reiterated in *Abhishek v. State of M.P.* 2023 SCC OnLine SC 1083 wherein it was observed:

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12. The contours of the power to quash criminal proceedings under Section 482 Cr. P.C. are well defined. In *V. Ravi Kumar v. State represented by Inspector of Police,*

District Crime Branch, Salem, Tamil Nadu [(2019) 14 SCC

568], this Court affirmed that where an accused seeks quashing of the FIR, invoking the inherent jurisdiction of the High Court, it is wholly impermissible for the High

Court to enter into the factual arena to adjudge the correctness of the allegations in the complaint. In *Neeharika Infrastructure (P). Ltd. v. State of*

of
Maharashtra [Criminal Appeal No. 330 of 2021, decided on
13.04.2021], a 3-Judge Bench of this Court elaborately
considered the scope and extent of the power under
Section 482 Cr. P.C. It was observed that the power of
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quashing should be exercised sparingly, with
circumspection and in the rarest of rare cases, such

standard not being confused with the norm formulated in
the context of the death penalty. It was further observed
that while examining the FIR/complaint, quashing of
which is sought, the Court cannot embark upon an

enquiry as to the reliability or genuineness or otherwise
of the allegations made therein, but if the Court thinks fit,
regard being had to the parameters of quashing and the

self-restraint imposed by law, and more particularly, the
parameters laid down by this Court in R.P. Kapur v. State of

Punjab (AIR 1960 SC 866) and State of Haryana v. Bhajan
Lal [(1992) Supp (1) SCC 335], the Court would have
jurisdiction to quash the FIR/complaint.

16. It is apparent from these judgments that power
under Section 482 of Cr.P.C. can be exercised to prevent the
abuse of process or secure the ends of justice. The Court can
quash the F.I.R. if the allegations do not constitute an offence or
make out a case against the accused. However, it is not

permissible for it to conduct a mini-trial to arrive at such findings.

17. It was submitted that the police are conducting the investigation and the FIR cannot be quashed. This submission is

not acceptable. It was laid down by Hon'ble Supreme Court in Uma Shankar Gopalika v State of Bihar, (2005) 10 SCC 336 that

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when the complaint fails to disclose any criminal offence the
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proceeding is liable to be quashed under Section 482 of the Code
even during the investigation. It was observed:

'In our view petition of complaint does not disclose any

criminal offence at all much less any offence either under Section 420 or Section 120-B IPC and the present case is a case of purely civil dispute between the parties for which

remedy lies before a civil court by filing a properly constituted suit. In our opinion, in view of these facts

allowing the police investigation to continue would

amount to an abuse of the process of court and to prevent the same it was just and expedient for the High Court to

quash the same by exercising the powers under Section 482 Code which it has erroneously refused.'

18. Similarly it was held in Neeharika Infrastructure Pvt. Ltd. v. State of Maharashtra and Others, 2021 SCC OnLine SC 315, that the Courts will not thwart an investigation but where the

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19

FIR does not disclose the commission of cognisable offence, it will not allow the investigations to proceed. It was observed:-

"57. From the aforesaid decisions of this Court, right from the decision of the Privy Council in the case of Khawaja Nazir Ahmad (supra), the following principles of

law emerge:

i) The police has the statutory right and duty under the relevant provisions of the Code of Criminal

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Procedure contained in Chapter XIV of the Code to investigate into cognizable offences;

ii) Courts would not thwart any investigation into
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the cognizable offences;

iii) However, in cases where no cognizable offence

or offence of any kind is disclosed in the first
information report the Court will not permit an
investigation to go on;

iv) The power of quashing should be exercised
sparingly with circumspection, in the 'rarest of rare
cases'. (The rarest of rare cases standard in its
application for quashing under Section 482 Cr.P.C.

is not to be confused with the norm which has been

formulated in the context of the death penalty, as
explained previously by this Court);

v) While examining an FIR/complaint, quashing of

which is sought, the court cannot embark upon an
enquiry as to the reliability or genuineness or
otherwise of the allegations made in the
FIR/complaint;

vi) Criminal proceedings ought not to be scuttled at
the initial stage;

vii) Quashing of a complaint/FIR should be an
exception and a rarity than an ordinary rule;

viii) Ordinarily, the courts are barred from usurping
the jurisdiction of the police, since the two organs

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activities. The inherent power of the court is, however, recognised to secure the ends of justice or

prevent the above of the process by Section 482

Cr.P.C.

ix) The functions of the judiciary and the police are complementary, not overlapping;

x) Save in exceptional cases where non-interference would result in miscarriage of justice, the Court and the judicial process should not

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interfere at the stage of investigation of offences;
xi) Extraordinary and inherent powers of the Court do not confer an arbitrary jurisdiction on the Court
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to act according to its whims or caprice;
xii) The first information report is not an

encyclopaedia which must disclose all facts and details relating to the offence reported. Therefore, when the investigation by the police is in progress, the court should not go into the merits of the

allegations in the FIR. Police must be permitted to complete the investigation. It would be premature to pronounce the conclusion based on hazy facts

that the complaint/FIR does not deserve to be

investigated or that it amounts to abuse of process of law. During or after the investigation, if the investigating officer finds that there is no

substance in the application made by the complainant, the investigating officer may file an appropriate report/summary before the learned Magistrate which may be considered by the learned Magistrate in accordance with the known procedure;

xiii) The power under Section 482 Cr.P.C. is very wide, but the conferment of wide power requires the court to be cautious. It casts an onerous and more diligent duty on the court;

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xiv) However, at the same time, the court, if it thinks fit, regard being had to the parameters of quashing and the self-restraint imposed by law,

more particularly the parameters laid down by this

Court in the cases of R.P. Kapur (supra) and Bhajan Lal (supra), has the jurisdiction to quash the FIR/complaint; and xv) When prayer for quashing

the FIR is made by the alleged accused, the court when it exercises the power under Section 482 Cr.P.C., only has to consider whether or not the

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allegations in the FIR disclose the commission of a cognizable offence and is not required to consider on merits whether the allegations make out a cognizable offence or not and the court has to
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permit the investigating agency/police to investigate the allegations in the FIR. "

19. It is apparent from the Judgments of the Hon'ble Supreme Court that F.I.R. can be quashed if it does not disclose

the commission of an offence. This power can be exercised even

during the investigation and the submission that power cannot

be exercised when the investigation is being conducted is not acceptable.

20. Both parties have relied upon various documents filed by them as Annexure to their petition, reply, rejoinder and sur-rejoinder. However, it is not permissible to look into the documents annexed by the parties while exercising jurisdiction under Section 482 of Cr.P.C. It was laid down by the Hon'ble

Supreme Court in MCD v. Ram Kishan Rohtagi, (1983) 1 SCC 1: 1983
SCC (Cri) 115, that the proceedings can be quashed if on the face

of the complaint and the papers accompanying the same no

offence is constituted. It is not permissible to add or subtract

anything. It was observed:

"10. It is, therefore, manifestly clear that proceedings

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against an accused in the initial stages can be quashed
only if on the face of the complaint or the papers
accompanying the same, no offence is constituted. In
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other words, the test is that taking the allegations and the
complaint as they are, without adding or subtracting

anything, if no offence is made out then the High Court
will be justified in quashing the proceedings in exercise of
its powers under Section 482 of the present Code."

21. Madras High Court also held in Ganga Bai v. Shriram,

1990 SCC OnLine MP 213: ILR 1992 MP 964: 1991 Cri LJ 2018, that

the fresh evidence is not permissible or desirable in the

proceeding under Section 482 of Cr.P.C. It was observed:

"Proceedings under Section 482, Cr.P.C. cannot be

allowed to be converted into a full-dressed trial. Shri Maheshwari filed a photostate copy of an order dated 28.7.1983, passed in Criminal Case No. 1005 of 1977, to which the present petitioner was not a party. Fresh evidence at this stage is neither permissible nor desirable. The respondent by filing this document is virtually introducing additional evidence, which is not the object of Section 482, Cr.P.C."

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22. Andhra Pradesh High Court also took a similar view in Bharat Metal Box Company Limited, Hyderabad and Others vs. G.

K. Strips Private Limited and another, 2004 STPL 43 AP, and held:

"9. This Court can only look into the complaint and the

documents filed along with it and the sworn statements of the witnesses if any recorded. While judging the correctness of the proceedings, it cannot look into the

of

documents, which are not filed before the lower Court. Section 482 Cr.PC debars the Court to look into fresh documents, in view of the principles laid down by the Supreme Court in State of Karnataka v. M. Devendrappa

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and another, 2002 (1) Supreme 192. The relevant portion of the said judgment reads as follows:

"The complaint has to be read as a whole. If it appears that on consideration of the allegations, in the light of the statement made on oath of the complainant that the ingredients of the offence or offences are disclosed and

there is no material to show that the complaint is mala fide, frivolous or vexatious, in that event there would be no justification for interference by the High Court. When

information is lodged at the Police Station and an offence is registered, then the mala fides of the

informant would be of secondary importance. It is the material collected during the investigation and evidence

led in Court, which decides the fate of the accused person. The allegations of mala fides against the informant are of no consequence and cannot by itself be the basis for quashing the proceedings".

23. A similar view was taken in Mahendra K.C. v. State of Karnataka, (2022) 2 SCC 129: (2022) 1 SCC (Cri) 401 wherein it was

observed at page 142:

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"16. ... the test to be applied is whether the allegations in the complaint as they stand, without adding or detracting from the complaint, prima facie establish the ingredients

of the offence alleged. At this stage, the High Court

cannot test the veracity of the allegations nor for that matter can it proceed in the manner that a judge conducting a trial would, on the basis of the evidence

collected during the course of the trial."

24. This position was reiterated in *Supriya Jain v. State of*

of
Haryana, (2023) 7 SCC 711: 2023 SCC OnLine SC 765 wherein it was

held:

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13. All these documents which the petitioner seeks to rely on, if genuine, could be helpful for her defence at the trial

but the same are not material at the stage of deciding whether quashing as prayed for by her before the High Court was warranted or not. We, therefore, see no reason to place any reliance on these three documents.

25. A similar view was taken in Iveco Magirus

Brandschutztechnik GMBH v. Nirmal Kishore Bhartiya, 2023 SCC

OnLine SC 1258 wherein it was observed:

55. Adverting to the aspect of the exercise of jurisdiction

by the High Courts under section 482, Cr. P.C., in a case where the offence of defamation is claimed by the accused to have not been committed based on any of the Exceptions and a prayer for quashing, is made, the law seems to be well settled that the High Courts can go no further and enlarge the scope of inquiry if the accused seeks to rely on materials which were not there before the Magistrate. This is based on the simple proposition that what the Magistrate could not do, the High Courts may not do. We may not be understood to undermine the High Courts' powers saved by section 482, Cr. P.C.; such powers are

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always available to be exercised ex debito justitiae, i.e., to do real and substantial justice for the administration of which alone the High Courts exist. However, the tests laid

down for quashing an F.I.R. or criminal proceedings

arising from a police report by the High Courts in the exercise of jurisdiction under section 482, Cr. P.C. not being substantially different from the tests laid down for

quashing of a process issued under section 204 read with section 200, the High Courts on recording due satisfaction are empowered to interfere if on a reading of

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the complaint, the substance of statements on oath of the complainant and the witness, if any, and documentary evidence as produced, no offence is made out and that proceedings, if allowed to continue, would amount to an
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abuse of the legal process. This too, would be impermissible if the justice of a given case does not overwhelmingly so demand." (Emphasis supplied)

26. Therefore, it is not permissible to look into the

material filed by the parties and the case is to be decided as per the allegations made in the FIR.

27. It has been asserted in the FIR that the property was inherited by the informant's father from his father and he could

not have executed a sale deed without the consent of the legal

heirs. This submission is not acceptable. The succession amongst the Christians is governed by the Indian Succession Act and there is no concept of ancestral property. It was laid down in Jujjavarapu Yesurao v. Nadakuduru Kamala Kumar, 2007 SCC OnLine AP 353 : (2007) 5 ALD 140 : (2008) 61 AIC 640 : (2007) 58

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AIC (Sum 14) 6 : (2007) 6 ALT 249 that principles of Hindu Law cannot be applied to Muslim, Parsi, Christian or Jew even if such

principles were being followed earlier. It was observed:

"17. Applying the above principle and having regard to

the main part of the section regarding applicability, inclusionary part and exclusionary part, there cannot be any doubt that whether or not Hindu Law governed or

of applied prior to 1956, a Muslim, Christian, Parsi or Jew, after coming into force of Hindu Succession Act, 1956, cannot be governed by Succession Act nor persons who admit that they are Christian by religion can plead before
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a common law Court that they are governed by Hindu Law in matters of partition of joint family property. There

cannot be two opinions that the peculiar concept of Joint Hindu Family, coparcenary and doctrine of blending etc., are very unique to Hindu Law. These cannot be made applicable to Christians, Muslims or Parsis or Jews to

whom the Succession Act has no application nor Hindu Law has any application as observed by Mulla, whose elucidation is noticed supra. It is axiomatic that the

evidence let in before the trial Court -- both oral and documentary -- and considered by the Courts below

cannot be reconsidered by the Court of the second appeal. Nonetheless, a cursory look at the plaint, evidence of P.W. 1, Ex. B.3, gift deed executed by his mother in favour of

the first defendant, Ex. B.2, sale deed by defendants 1 to 3 in favour of Brahmaiah, husband of Victoria would show that they themselves described as Christians. The submission of the learned Counsel for the plaintiff is that they are Harizans claiming themselves as Christians without baptism and therefore, the Hindu Law of succession should be applied to them. The argument is liable to be rejected. There cannot be any better evidence than an unexplained admission of a party to the proceedings in a suit. The plaintiff admitted that they are Christians and indeed described the defendants as

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Christians. Therefore, the plaintiff is not entitled to a

decree of partition, as per Hindu Law."

28. Therefore, it is not acceptable that the informant's

father was not competent to execute the sale deed without the consent of the legal heirs of the informant's grandfather as the

property was ancestral.

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29. The FIR further mentions that an amount of 1.18 crore was transferred in the name of Daljeet Singh without any consideration. The FIR does not mention that this was done based on the forged document. Although an attempt was made by the police during the investigation to establish so. Even if the amount was transferred by the informant's father during his lifetime without any consideration, it will not constitute a criminal offence.

30. It is undisputed that the informant had filed an FIR

No. 45 of 2017 against her father. This fact was not disputed by any of the parties. Since this is an undisputed document and was also relied upon by the police, therefore, the same can be taken into consideration. The informant had made allegations against her father in the previous FIR that he was selling the property. She informed her aunt's sister and cousins about the sale. It was

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found that the informant's father had got the property mutated by way of some Will and this was forged. He had sold a major

portion of the land to Baldev Thakur. Thus, the fact that the

informant's father had sold the property to Baldev Thakur

during his lifetime was also the subject matter of the previous FIR. Admittedly, the police had filed a cancellation report in the

of previous FIR which was accepted by the competent Court of law.

Hence, the execution of the sale deed by her father is not in
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dispute whether it was executed under some influence or not is not the subject matter of the Criminal Courts.

31. It was submitted that the sale deed is shown to have

been executed for an amount of 3.9 crores and there was no

evidence of the payment of the sale consideration. The account

of the informant's father does not show any deposit of this huge amount which clearly shows that the sale deed was without

consideration. Even if it is accepted as correct that no sale consideration had passed, the informant being a third party is not entitled to raise this objection. It was laid down by the Judicial Committee of the Privy Council more than 100 years ago in Lal Achal Ram Vs. Raja Kazim Husain Khan (1904-1905) 32 Law

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Report Indian Appeal 113 that a stranger to a contract cannot take a plea regarding the absence of consideration. It was observed:-

The statement in the saledeed to the effect that one lakh had been paid to Ardawan was not in accordance with the fact. Indeed, it seems inconsistent with the scope of the

deed. It is hardly conceivable that anybody in the position of the Raja would pay down without any security so large a sum to a man confessedly without means. And besides,

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it is obvious that if it had been intended that Ardawan should receive a lakh of rupees at once, there would have been no occasion to provide a monthly allowance for his " personal expenses.'" Probably the statement was

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introduced by the draftsman under the notion that it might impart some additional solemnity to the

instru-ment. Of course, at first blush, the untrue statement throws suspicion upon the whole transaction. After all, so long as the deed stands, it is no concern of Achal Ram's that Ardawan may have a grievance on the score of a

misstatement in an instrument to which Achal Ram is no party. Ardawan himself has taken no steps to impeach the deed. On the contrary, in the course of the two years that

elapsed between the date of the deed and the institution of the suit (which was delayed as long as possible in order

to await the result of Narendra's appeal) Ardawan more than once affirmed the transaction, claiming and

receiving his monthly allowance under the deed and urging Raja's agent to commence proceedings without delay. (Emphasis supplied)

32. It was laid down in Appu versus Bhaskaran 2002 (1) CivCC 173, that the payment of consideration is not a necessary condition for the execution of the sale deed. It was observed:-

"[11] Section 54 of the Transfer of Property Act defines sale as follows:

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"Sale is a transfer of ownership in exchange for a price paid or promised or part-paid and part-promised".
From the above definition of sale in the T.P. Act it is clear

that transfer of ownership can be in exchange for a price

paid or promised or part paid and part promised. Hence passing of the consideration is not a prerequisite or condition precedent for the sale or transfer of ownership

or immovable property.

[12] In the book Transfer of Property Act 9th Edition, the learned Author H.S. Gour has observed at page 592 as

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follows:

"Now, the general law is that title passes on the execution and registration of sale-deed though the
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purchase money may remain wholly or partly unpaid, except where there is an agreement that the sale should

take effect only if the consideration is first paid".

[13] The learned Author Mulla, in his book Transfer of Property Act, 8thEdition, at page 368 has observed as follows:

"The answer to the question whether the transferor intends to transfer ownership by mere execution or

registration or whether he intends to do only after receipt of consideration would depend on the intention

of the parties. The intention is primarily to be determined from the recitals of the sale deed. It is only when the recitals are ambiguous that extraneous

evidence is admissible."

[14] In the decision reported in Kemta Prasad v. Lachmi Sah (AIR 1929 Patna, 550), a Division Bench of the Patna High Court has held as follows:

"A sale once registered passes title unless it is established to the satisfaction of the Court that the intention of the parties was that title should not pass until the payment of consideration".

[15] In the decision reported in State of Kerala v. Cochin Chemical Refineries Ltd. (AIR 1968 SC 1361), the Supreme

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Court has observed as follows:

"A transaction of mortgage formally executed does not become void or ineffective merely because the mortgagee

fails to advance the amount of money undertakes to be

advanced by him. If without advancing the amount agreed to be advanced, he sues on the title created under the deed or mortgage, the court will not award him a

decree for anything more than what he has advanced. But that is not to say that the mortgage is invalid". Though the Supreme Court made the above observations

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in respect of mortgages the same principle is applicable to sale also.

[16] In the decision reported in Narayan Moopil v.

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Narayanan Prabhakaran (1993 (1) KLT 41), a Single Judge of this Court has observed as follows:-

"The contention of the learned counsel for the appellant that once the price of the property which is the subject matter of a registered sale deed is shown to have been not paid, the document would become void, cannot be

accepted. A conveyance by a registered deed cannot be placed in the same category as agreements void for want of consideration. If the price of the property which is the

subject matter of a registered sale deed is not paid, the

vendor cannot on that account get the sale deed avoided. All that he can do in such circumstance is only to sue for the purchase price and that amount will get a charge on

the property as unpaid purchase money under Section 55(4)(b) of the Transfer of Property Act".

[17] In the decision reported in Vidhyadhar v. Manikikrao (AIR 1999 SC 1441), the Supreme Court has observed as follows:

35. The definition indicates that in order to constitute a sale, there must be a transfer of ownership from one person to another, i.e., transfer of all rights and interest in the properties which are possessed by that person are transferred by him to another person. The transferor cannot retain any part of his interest or right in that

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property or else it would not be a sale. The definition further says that the transfer of ownership has to be for a "price paid or promised or part-paid and part-

promised". Price thus constitutes an essential ingredient

of the transaction of sale. The words "price paid or promised or part-paid and part-promised" indicate the actual payment of the whole of the price at the time of

the execution of the sale deed is not a sine qua non to the completion of the sale. Even if the whole of the price is not paid but the document is executed and thereafter

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registered if the property is of the value of more than Rs. 100/- the sale would be complete".

[18] Therefore, it is clear that on the basis of the mere contention of the respondent that the consideration for
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Ext. A1 is not passed from the appellant to the respondent it cannot be held that the registered assignment deed Ext.

A1 is void or ineffective.

[19] At page 367 of the 8th Edition of the book, Transfer of Property Act, the learned Author Mulla has observed as

follows:

"On the other hand, it does not follow that property passes as soon as the instrument is registered for the true

test is the intention of the parties(v). Registration is prima facie proof of an intention to transfer but it is no

proof of an operative transfer if there is a condition precedent (Which must be strictly proved) as to payment for consideration or delivery of the deed. Thus the seller

may retain the deed pending payment of the price and in that case, there is no transfer until the price is paid and the deed delivered. The words "price paid or promised," in the definition show that the payment of the price is not necessarily a sine qua non to the completion of the sale".

33. Therefore, even if the sale deed was without consideration, the same will not make it bad.

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34. It was asserted that the sale deed is a forged document. The term forgery has been defined in Section 463 of

IPC as under:

"463. Forgery.--Whoever makes any false documents or

electronic record part of a document or electronic record with, intent to cause damage or injury], to the public or any person, or to support any claim or title, or to cause

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any person to part with property, or to enter into any express or implied contract, or with intent to commit fraud or that fraud may be committed, commits forgery."

35. It is apparent from the definition that a person has to make a false document before he can be said to have committed forgery. Making a false document is defined in section 464 of IPC. It reads as under:

464. Making a false document.--A person is said to make a false document or false electronic record--

First.--Who dishonestly or fraudulently--

(a) makes, signs, seals or executes a document or part of a document;

(b) makes or transmits any electronic record or part of any electronic record;

(c) affixes any electronic signature on any electronic record;

(d) makes any mark denoting the execution of a document or the authenticity of the electronic signature,

with the intention of causing it to be believed that such document or part of a document, electronic record or electronic signature was made, signed, sealed,

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executed, transmitted or affixed by or by the authority of a person by whom or by whose authority he knows that it was not made, signed, sealed, executed or affixed; or

Secondly.--Who, without lawful authority, dishonestly or

fraudulently, by cancellation or otherwise, alters a document or an electronic record in any material part thereof, after it has been made, executed or affixed

with electronic signature either by himself or by any other person, whether such person be living or dead at the time of such alteration; or

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Thirdly.--Who dishonestly or fraudulently causes any person to sign, seal, execute or alter a document or an electronic record or to affix his electronic signature on

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any electronic record knowing that such person by reason of unsoundness of mind or intoxication cannot, or that by reason of deception practised upon him, he does not

know the contents of the document or electronic record or the nature of the alteration.

36. It was laid down by the Hon'ble Supreme Court in

Mohammed Ibrahim versus State of Bihar 2009 (8) SCC 751 that

the prosecution is required to prove that the accused had forged

a document by creating a false document to establish the offence of forgery. A false document is when a document is executed

claiming to be executed by someone else or authorised by

someone else or a document is tampered or signatures are
obtained by practising deception. It was observed:-

"[10] An analysis of section 464 of the Penal Code shows
that it divides false documents into three categories:
10.1) The first is where a person dishonestly or
fraudulently makes or executes a document with

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the intention of causing it to be believed that such
document was made or executed by some other
person, or by the authority of some other person, by

whom or by whose authority he knows it was not

made or executed.

10.2) The second is where a person dishonestly or
fraudulently, by cancellation or otherwise, alters a

document in any material part, without lawful
authority, after it has been made or executed by
either himself or any other person.

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10.3) The third is where a person dishonestly or
fraudulently causes any person to sign, execute or
alter a document knowing that such person could

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not because of (a) unsoundness of mind; or (b) intoxication; or (c) deception practised upon him, know the contents of the document or the nature of

the alteration.

[11] In short, a person is said to have made a 'false document', if (i) he made or executed a document

claiming to be someone else or authorised by someone else; or (ii) he altered or tampered with a document; or (iii) he obtained a document by

practising deception, or from a person not in control of his senses."

37. In the cited case, the prosecution alleged that the

accused had executed a sale deed regarding the property over which he had no right. It was held by the Hon'ble Supreme Court that there is a distinction between a document whose contents are false and a document which is itself false within the definition of Section 464 of IPC. A document containing false averment does not attract the provision of Criminal Law and the

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accused cannot be held liable for executing the sale deed by

claiming to be the owner when he was not the owner. It was

observed:-

"[12] The sale deeds executed by the first appellant,

clearly and obviously do not fall under the second and third categories of 'false documents'. It, therefore, remains to be seen whether the claim of the complainant

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that the execution of sale deeds by the first accused, who was in no way connected with the land, amounted to committing forgery of the documents with the intention of taking possession of complainant's land (and that

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accused 2 to 5 as the purchaser, witness, scribe and stamp vendor colluded with first accused in execution and

registration of the said sale deeds) would bring the case under the first category. There is a fundamental difference between a person executing a sale deed claiming that the property conveyed is his property, and a

person executing a sale deed by impersonating the owner or falsely claiming to be authorised or empowered by the owner, to execute the deed on the owner's behalf. When a

person executes a document conveying a property describing it as his, there are two possibilities. The first is

that he bonafide believes that the property actually belongs to him. The second is that he may be dishonestly or fraudulently claiming it to be his even though he

knows that it is not his property. But to fall under the first category of 'false documents', it is not sufficient that a document has been made or executed dishonestly or fraudulently. There is a further requirement that it should have been made with the intention of causing it to be believed that such document was made or executed by, or by the authority of a person, by whom or by whose authority he knows that it was not made or executed. When a document is executed by a person claiming a property which is not his, he is not claiming that he is someone else nor is he claiming that he is authorised by

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37

someone else. Therefore, execution of such a document (purporting to convey some property of which he is not the owner) is not an execution of a false document as

defined under section 464 of the Code. If what is executed

is not a false document, there is no forgery. If there is no forgery, then neither section 467 nor section 471 of the Code is attracted".

38. In Mir Nagvi Askari Vs CBI 2009 (15) SCC 643 the accused was charged with making false entries in the record of

of the bank. It was laid down by the Hon'ble Supreme Court that making wrong entries by itself will not attract criminal liability unless it is proved that the document was false within the meaning of Section 464 of IPC. It was observed:-

"[229] A person is said to make a false document or record if he satisfies one of the three conditions as noticed hereinbefore and provided for under the said section. The first condition being that the document has

been falsified with the intention of causing it to be believed that such document has been made by a person,

by whom the person falsifying the document knows that it was not made. Clearly, the documents in question in the present case, even if it be assumed to have been made

dishonestly or fraudulently, had not been made with the intention of causing it to be believed that they were made by or under the authority of someone else.
[230] The second criterion of the section deals with a case where a person without lawful authority alters a document after it has been made. There has been no allegation of alteration of the voucher in question after they have been made. Therefore in our opinion, the second criterion of the said section is also not applicable to the present case.

[231] The third and final condition of Section 464 deals with a document, signed by a person who due to his mental capacity does not know the contents of the

documents which were made i.e because of intoxication

or unsoundness of mind etc. Such is also not the case before us. Indisputably therefore the accused before us could not have been convicted for the making of a false

document.

[232] The learned Special Judge, therefore, in our opinion, erred in holding that the accused had prepared a

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false document, which clearly, having regard to the provisions of the law, could not have been done.

[233] Further, the offence of forgery deals with the
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making of a false document with the specific intentions enumerated therein. The said section has been reproduced below.

"463. Forgery.--Whoever makes any false documents or electronic record part of a document or electronic record with, intent to cause damage or

injury], to the public or any person, or to support

any claim or title, or to cause any person to part with property, or to enter into any express or

implied contract, or with intent to commit fraud or that fraud may be committed, commits forgery."

[234] However, since we have already held that the commission of the said offence has not been convincingly

established, the accused could not have been convicted for the offence of forgery. The definition of "false document" is a part of the definition of "forgery". Both must be read together. [Dr. Vimla v. Delhi Administration, 1963 Supp2 SCR 585]".

39. It was further held that in the absence of the document being forged a person cannot be convicted of the commission of an offence punishable under Section 471 of IPC. It

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was observed:-

"[235] Accordingly, the accused could not have been tried

for an offence under Section 467 which deals with forgery

of valuable securities, will etc. or Section 471, i.e., using as genuine a forged document or Section 477-A, i.e, falsification of accounts. The conviction of the accused

for the said offences is accordingly set aside".

40. This question was also considered in Sheila Sebastian

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versus R Jawaharaj & Anr ETC. 2018 (7) SCC 581 and it was held
that unless the ingredients of Section 464 of IPC are satisfied a
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person cannot be convicted of the commission of an offence
punishable under Section 465 of IPC. It was observed:-

"[26] The definition of "false document" is a part of the definition of "forgery". Both must be read together.

'Forgery' and 'Fraud' are essentially matters of evidence which could be proved as a fact by direct evidence or by inferences drawn from proved facts. In the case at hand,

there is no finding recorded by the trial Court that the respondents have made any false document or part of the

document/record to execute the mortgage deed under the guise of that 'false document'. Hence, neither respondent

no.1 nor respondent no.2 can be held as makers of the

forged documents. It is the imposter who can be said to have made the false document by committing forgery. In such an event the trial court, as well as the appellate court, misguided themselves by convicting the accused. Therefore, the High Court has rightly acquitted the accused based on the settled legal position and we find no reason to interfere with the same".

41. In the present case, there is no allegation that the document was executed in the name of the informant's father or

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it was altered after it had been executed or the informant's father was suffering from unsoundness of mind or he was

intoxicated or any deception was practised upon him. An FIR

was lodged against him during his time admitting that he had

executed the sale deed; hence, the necessary ingredients for the commission of the offence of forgery have not been established.

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42. The police have also registered the FIR for the
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commission of an offence punishable under Section 420 of IPC.

The ingredients of cheating were explained by the Hon'ble
Supreme Court in S.W. Palanikar v. State of Bihar, (2002) 1 SCC
241as under:

"10. The ingredients of an offence of cheating are: (i)

there should be fraudulent or dishonest inducement of a
person by deceiving him, (ii)(a) the person so deceived

should be induced to deliver any property to any person
or to consent that any person shall retain any property; or
(b) the person so deceived should be intentionally

induced to do or omit to do anything which he would not
do or omit if he were not so deceived; and (iii) in cases
covered by (ii)(b), the act of omission should be one
which causes or is likely to cause damage or harm to the
person induced in body, mind, reputation or property.

11. One of us (D.P. Mohapatra, J.), speaking for the Bench,
in HridayaRanjan Prasad Verma v. State of Bihar [(2000) 4
SCC 168: 2000 SCC (Cri) 786] on facts of that case, has
expressed thus: (SCC p. 177, para 15)

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"15. In determining the question it has to be kept in
mind that the distinction between mere breach of
contract and the offence of cheating is a fine one. It

depends upon the intention of the accused at the

time of inducement which may be judged by his subsequent conduct but for this subsequent conduct is not the sole test. Mere breach of contract

cannot give rise to criminal prosecution for cheating unless fraudulent or dishonest intention is shown right at the beginning of the transaction,

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that is the time when the offence is said to have been committed. Therefore it is the intention which is the gist of the offence. To hold a person guilty of
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cheating it is necessary to show that he had fraudulent or dishonest intention at the time of making the
promise. From his mere failure to keep up promise subsequently such a culpable intention right at the beginning, that is, when he made the promise cannot be presumed."

(emphasis supplied)

12. Finding that the ingredients of the offence of cheating

and its allied offences had not been made out, this Court interfered with the order of the High Court and quashed

the criminal proceedings.

13. In G.V. Rao v. L.H.V. Prasad [(2000) 3 SCC 693: 2000 SCC

(Cri) 733] this Court in para 7 has stated thus: (SCC pp. 696-97)

"7. As mentioned above, Section 415 has two parts. While in the first part, the person must 'dishonestly' or 'fraudulently' induce the complainant to deliver any property; in the second part, the person should intentionally induce the complainant to do or omit to do a thing. That is to say, in the first part, inducement must be dishonest or fraudulent. In the second part, the inducement should be intentional. As observed by this Court

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in *Jaswantrao Manilal Akhaney v. State of Bombay* [AIR 1956 SC 575: 1956 Cri LJ 1116] a guilty intention is an essential ingredient of the offence of cheating. In

order, therefore, to secure the conviction of a

person for the offence of cheating, 'mens rea' on the part of that person, must be established. It was also observed in *Mahadeo Prasad v. State of W.B.* [AIR

1954 SC 724: 1954 Cri LJ 1806] that in order to constitute the offence of cheating, the intention to deceive should be in existence at the time when the

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inducement was offered."

(emphasis supplied)

14. In Trisuns Chemical Industry v. Rajesh Agarwal [(1999) 8
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SCC 686: 2000 SCC (Cri) 47] dealing with the effect of
existence of arbitration clause in the agreement on

criminal prosecution on the ground that civil proceedings
are also maintainable, this Court has held that quashing
of FIR or a complaint exercising power under Section 482

CrPC should be limited to a very extreme exception;
merely because an act has a civil profile is not enough to
stop action on the criminal side. It is further held that a

provision made in the agreement for referring the
disputes to arbitration is not an effective substitute for a

criminal prosecution when the disputed act constitutes a
criminal offence.

43. A similar view was taken in G.V. Rao v. L.H.V. Prasad,

(2000) 3 SCC 693 as under:

"4. "Cheating" is defined in Section 415 of the Penal
Code, 1860 which provides as under:

"415. Cheating.--Whoever, by deceiving any person,
fraudulently or dishonestly induces the person so
deceived to deliver any property to any person, or to
consent that any person shall retain any property,
or intentionally induces the person so deceived to

do or omit to do anything which he would not do or omit if he were not so deceived, and which act or omission causes or is likely to cause damage or

harm to that person in body, mind, reputation or

property, is said to 'cheat'.

Explanation.--A dishonest concealment of facts is a

deception within the meaning of this section."

5. The High Court quashed the proceedings principally on the ground that Chapter XVII of the Penal Code, 1860

of

deals with the offences against properties and, therefore, Section 415 must also necessarily relate to the property which, in the instant case, is not involved and, consequently, the FIR was liable to be quashed. The broad
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proposition on which the High Court proceeded is not correct. While the first part of the definition relates to

property, the second part does not necessarily relate to property. The second part is reproduced below:

"415. ... intentionally induces the person so

deceived to do or omit to do anything which he would not do or omit if he were not so deceived, and which act or omission causes or is likely to cause

damage or harm to that person in body, mind, reputation or property, is said to 'cheat'."

6. This part speaks of intentional deception which must be intended not only to induce the person deceived to do

or omit to do something but also to cause damage or harm to that person in body, mind, reputation or property. The intentional deception presupposes the existence of a dominant motive of the person making the inducement. Such inducement should have led the person deceived or induced to do or omit to do anything which he would not have done or omitted to do if he were not deceived. The further requirement is that such an act or omission should have caused damage or harm to body, mind, reputation or property.

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7. As mentioned above, Section 415 has two parts. While in the first part, the person must "dishonestly" or "fraudulently" induce the complainant to deliver any

property; in the second part, the person should

intentionally induce the complainant to do or omit to do a thing. That is to say, in the first part, inducement must be dishonest or fraudulent. In the second part, the

inducement should be intentional. As observed by this Court in *Jaswantraai Manilal Akhaney v. State of Bombay* [AIR 1956 SC 575: 1956 Cri LJ 1116: 1956 SCR 483] a guilty

of intention is an essential ingredient of the offence of cheating. In order, therefore, to secure the conviction of a person for the offence of cheating, "mens rea" on the part of that person, must be established. It was also observed in *Mahadeo Prasad v. State of W.B.* [AIR 1954 SC 724: 1954

Cri LJ 1806] that in order to constitute the offence of cheating, the intention to deceive should be in existence at the time when the inducement was offered.

8. Thus, so far as the second part of Section 415 is

concerned, "property", at no stage, is involved. Here it is the doing of an act or omission to do an act by the complainant, as a result of intentional inducement by the

accused, which is material. Such inducement should

result in the doing of an act or omission to do an act as a result of which the person concerned should have suffered or was likely to suffer damage or harm in body,

mind, reputation or property. In an old decision of the Allahabad High Court in *Empress v. Sheoram* [(1882) 2 AWN 237], it was held by Mahmood, J.:

"That to palm off a young woman as belonging to a caste different to the one to which she really belongs, with the object of obtaining money, amounts to the offence of cheating by personation as

defined in Section 416 of the Penal Code, 1860, which must be read in the light of the preceding Section 415."

44. In the present case, there is no averment in the FIR that any misrepresentation was made to any person or any .

person was induced to deliver any property which he would not have done but for the misrepresentation practised upon him.

The informant was admittedly not present at the time of the transaction between her father and the petitioners, therefore, of she is incompetent to say that any misrepresentation was made to her father. She had admitted in the previous FIR that her rt father had executed the sale deed of the property but she had complained that this was done without the consent of the other legal heirs and the property was ancestral. Thus, the necessary ingredients for establishing the cheating are also not made out.

45. It was stated in the FIR that the marriage between petitioner No.3 and the informant's father was not proper. Again this is a question between petitioner No. 3 and the informant's father. Admittedly, the informant was not present at the time of the marriage and therefore, she cannot have any personal knowledge whether the marriage was solemnized or not.

46. In the present case, the FIR has been lodged on the basis of the speculations. The informant admitted that her father cut off her relationship with his family members in the year 2017. She had even filed a complaint against her father in .

the year 2017. Thereafter, she filed the present complaint in the year 2022 based upon the apprehension, speculations and presumptions. These are not sufficient to disclose the commission of a cognizable offence. The continuation of the of investigation will amount to abuse of the process of law and cannot be permitted.

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47. Mr. Prashant Sen, learned Deputy Advocate General submitted that it was found during the investigation that there was evasion of stamp duty. However, there is nothing on record to show that the Collector or the Inspector General of Registration has raised any objection regarding the evasion of the stamp duty. The FIR does not mention anything about the evasion of the stamp duty. Therefore, it is not necessary to say anything about the same as the State has every right to take proceedings for the evasion. It is doubtful that the police can investigate this aspect in view of Section 70 of the Indian Stamp Act.

48. The police have added Section 120-B of IPC; however, there is no evidence that the petitioners have done any illegal act .

which constitutes an offence or is prohibited by law. Therefore, the ingredients in the FIR do not satisfy the requirements of Section 120-B of IPC.

49. It was submitted that the informant was in touch of with her father and the burial of the deceased was not proper.

rt Reference was made to the email and the photographs in support of this submission. As already stated, the Court is only to see the FIR and the material collected during the investigation. It is impermissible to add or subtract anything.

Further, the informant herself admitted that the deceased had broken all the contacts with his family members; hence, the previous communication will be immaterial. Even if the burial was not as per the religious belief, the same is not the subject matter of the FIR. Hence, no advantage can be derived from these submissions.

50. Therefore, the contents of the FIR even if accepted as correct do not amount to the commission of any offence.

Consequently, the present petition is allowed and FIR No. 8 of 2022, dated 26.8.2022, under Sections 420, 465, 467, 468, 471 and 120-B of IPC, registered at Police Station CID, Shimla, .

District Shimla, H.P. and the consequent proceedings arising out of the same are ordered to be quashed.

(Rakesh Kainthla) Judge 8th January, 2024 of (Chander) rt